

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                  |                                                                                     |                                    |                                                       |                                    |                                 |
|----------------------------------------------------------------------------------|-------------------------------------------------------------------------------------|------------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Nathan Winshall                                                 | Team:<br>Squad #03                                                                  | CCRB Case #:<br>201708733          | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                  |                                                                                     |                                    | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 10/13/2017 12:00 AM, Saturday,<br>10/14/2017 1:16 AM | Location of Incident:<br>§ 87(2)(b) [REDACTED]                                      | 18 Mo. SOL<br>4/14/2019            | Precinct:<br>69                                       |                                    |                                 |
| Date/Time CV Reported<br>Fri, 10/20/2017 3:08 PM                                 | CV Reported At:<br>CCRB                                                             | How CV Reported:<br>In-person      | Date/Time Received at CCRB<br>Fri, 10/20/2017 3:08 PM |                                    |                                 |
| <b>Complainant/Victim</b>                                                        | <b>Type</b>                                                                         | <b>Home Address</b>                |                                                       |                                    |                                 |
| [REDACTED]                                                                       | [REDACTED]                                                                          | [REDACTED]                         |                                                       |                                    |                                 |
| <b>Witness(es)</b>                                                               | <b>Home Address</b>                                                                 |                                    |                                                       |                                    |                                 |
| [REDACTED]                                                                       | [REDACTED]                                                                          |                                    |                                                       |                                    |                                 |
| <b>Subject Officer(s)</b>                                                        | <b>Shield</b>                                                                       | <b>TaxID</b>                       | <b>Command</b>                                        |                                    |                                 |
| 1. SGT Michael Iannuzzi                                                          | 03037                                                                               | 948048                             | 069 PCT                                               |                                    |                                 |
| <b>Witness Officer(s)</b>                                                        | <b>Shield No</b>                                                                    | <b>Tax No</b>                      | <b>Cmd Name</b>                                       |                                    |                                 |
| 1. POM Gary Mei                                                                  | 14893                                                                               | 961940                             | 069 PCT                                               |                                    |                                 |
| 2. POF Cassandra Barnwell                                                        | 12801                                                                               | 960204                             | 069 PCT                                               |                                    |                                 |
| 3. POF Kimberly Gunn                                                             | 30099                                                                               | 938628                             | 069 PCT                                               |                                    |                                 |
| 4. POM Ronald Starke                                                             | 16713                                                                               | 952264                             | 069 PCT                                               |                                    |                                 |
| 5. POM Michael Salvatori                                                         | 02814                                                                               | 957127                             | 069 PCT                                               |                                    |                                 |
| <b>Officer(s)</b>                                                                | <b>Allegation</b>                                                                   | <b>Investigator Recommendation</b> |                                                       |                                    |                                 |
| A . SGT Michael Iannuzzi                                                         | Abuse: Sergeant Michael Iannuzzi entered the<br>§ 87(2)(b) [REDACTED] in Brooklyn.  | A . Substantiated                  |                                                       |                                    |                                 |
| B . SGT Michael Iannuzzi                                                         | Abuse: Sergeant Michael Iannuzzi searched the<br>§ 87(2)(b) [REDACTED] in Brooklyn. | B . Substantiated                  |                                                       |                                    |                                 |

## Case Summary

§ 87(2)(b) filed this complaint with the CCRB in person on October 20, 2017.

On October 14, 2017, at approximately 1:16 a.m., on the authority of Sgt. Michael Iannuzzi, of the 69<sup>th</sup> Precinct, ESU forcibly entered and secured § 87(2)(b) in Brooklyn. After ESU secured the residence, Sgt. Iannuzzi entered and searched the premises (**Allegation A – Abuse of Authority: Substantiated**; and **Allegation B – Abuse of Authority: Substantiated**).

No video footage was obtained for this incident and no arrests were made nor summonses issued.

## Findings and Recommendations

**Allegation (A) Abuse of Authority: Sergeant Michael Iannuzzi entered the § 87(2)(b) in Brooklyn.**

**Allegation (B) Abuse of Authority: Sergeant Michael Iannuzzi searched the § 87(2)(b) in Brooklyn.**

§ 87(2)(b) stated that when he returned to his residence there were multiple NYPD officers waiting for him, who informed him that his house had been forcibly entered earlier that night. § 87(2)(b) alleged that a door was damaged during the entry. (This allegation was subsumed under the entry allegation.)

According to EVENT documents, at approximately 10:31 p.m., on October 13, 2017, a call was made by an anonymous female caller regarding a § 87(2)(b) emotionally disturbed male inside of § 87(2)(b) who likes to light fires and was “acting out” and possibly currently playing with fire. She stated that the male has a tendency of barricading himself in the apartment. Both EMS and NYPD were called to the scene of the incident. EMTs requested officers and a supervisor back to the location after the initial responding officers refused to enter and left the scene. At approximately 10:53 p.m., a second 9-1-1 call was made from a female caller who identified herself as § 87(2)(b) and provided a call back number. She stated that there was a § 87(2)(b) black male named § 87(2)(b) § 87(2)(b) who was around a black male named § 87(2)(b) § 87(2)(b) who is abusing drugs. She stated that this happens Thursday through Sunday. She further stated that the child does not get three meals a day and does not go to school on time (Board Review 01).

PO Deborah Quagliano, of the 69<sup>th</sup> Precinct, stated that she responded to the call of an EDP at the location and when she arrived, there were multiple officers on scene. The officers tried to determine whether anyone was home by knocking on the doors and ringing the doorbell but no one answered. It appeared to her that no one was inside. Officers attempted to call the call back number from the 9-1-1 call but there was no response. The officers left the location without attempting to enter.

§ 87(2)(b) § 87(2)(b) of the FDNY, stated that based on the 9-1-1 calls, he and his chief, who he conferred with over the phone, decided that they needed to gain entry to the location. § 87(2)(b) § 87(2)(b) stressed that had the NYPD refused to gain entry to the building, which they initially had done; it would have been a big deal, as an officer could be cited for failure to cooperate with a fellow agency. He also noted that had the NYPD refused to gain entry to the building and there had been an individual inside, the NYPD would assume full responsibility because the NYPD is responsible for all incidents involving emotionally disturbed persons or

someone who could cause harm, as they have the ability to control an emotionally disturbed person. The FDNY is capable of entering premises when emotionally disturbed people are not involved.

Sgt. Iannuzzi stated that when he was assigned the job, he was told that there was a neglected child inside, but was not told in what way the child was being neglected. Prior to this call, Sgt. Iannuzzi had not heard any other jobs go over the radio at this location. When Sgt. Iannuzzi arrived on scene, he did not learn of any additional conditions possibly present at the location aside from a possible neglected child. Sgt. Iannuzzi looked up the history of the location using DAS Lite on his department issued cellphone and saw that there were multiple prior domestic incidents at the location. Sgt. Iannuzzi did not recall if any of the domestic incidents involved children and did not recall over what time period the prior calls had occurred. § 87(2)(b) was “adamant” about entering the location and informed Sgt. Iannuzzi that § 87(2)(b) s supervisors had been notified about the incident. Sgt. Iannuzzi stated that there was no procedure to address who should take the lead on an incident to which both NYPD and EMS respond. In this incident, no specific city agency was taking the lead; rather, Sgt. Iannuzzi and § 87(2)(b) § 87(2)(b) made joint decisions. Despite this, it was ultimately Sgt. Iannuzzi’s decision to call ESU to have them enter the location as only a member of NYPD can call ESU. Sgt. Iannuzzi stated that he made the decision because there was a possibly neglected child inside, he could not see into the apartment, he was unsure whether someone was in the apartment or not, and because of the history of the location. ESU arrived on scene and forcibly entered the residence. After ESU secured the apartment, Sgt. Iannuzzi entered and searched the residence and determined that no one was inside.

The emergency doctrine, which allows officers to enter and search a location without a warrant, is comprised of three elements: “1) The police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property. 2) The search must not be primarily motivated by intent to arrest and seize evidence. 3) There must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched.” *People v. Mitchell*, 39 N.Y.2d 173 (1976), *People v. Doll*, 21 N.Y.3d 665 (2013) (Board Review 02, 08). Uniformed members of the service concerned shall cooperate with ambulance/hospital personnel in every reasonable manner. Patrol Guide Procedure 216-01 (Board Review 04).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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## Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 05).
- Sgt. Iannuzzi has been a member-of-service for nine years and this is the first CCRB complaint to which he has been a subject.

## Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]  
[REDACTED]
- As of April 27, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 07).

Squad No.: 3

|               |           |                    |       |
|---------------|-----------|--------------------|-------|
| Investigator: | _____     | _____              | _____ |
|               | Signature | Print Title & Name | Date  |

|               |           |                    |       |
|---------------|-----------|--------------------|-------|
| Squad Leader: | _____     | _____              | _____ |
|               | Signature | Print Title & Name | Date  |

|           |           |                    |       |
|-----------|-----------|--------------------|-------|
| Reviewer: | _____     | _____              | _____ |
|           | Signature | Print Title & Name | Date  |